Protection) Girdhar Lohani vs State G.N.C.T. Of Delhi on 15 July, 2025

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2572/2025&CRL.M.A. 20056/2025(Interim Protection)
GIRDHAR LOHANI .....Pet
Through: Mr. Sunil K. Jain, Adv.
versus
STATE G.N.C.T. OF DELHI .....Res
Through: Ms. Priyanka Dalal, APP for State.
SI Kailash, P.S. Karol Bagh
Mr.Rahul Mangla, Adv. for complainant Manav Garg (throughVC).
CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA
ORDER

% 15.07.2025

1. This hearing has been done through hybrid mode.

CRL.M.A. 20055/2025(Exemption)

2. Exemption allowed, subject to all just exceptions. The application stands disposed of.

BAIL APPLN. 2572/2025 & CRL.M.A. 20056/2025(Interim Protection)

3. The present application under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (Section 438 of the Cr.P.C.) seeks anticipatory bail in case FIR No. 745/2025 under Sections 318(4)/316(2)/3(5) of the Bharatiya Nyaya Sanhita, 2023 registered at P.S. Karol Bagh.

4. The case of the prosecution is that on 07.05.2025, the complainant, namely, Appy Bindal had filed a complaint alleging that one Mandeep Jain and Rajat Jain, who were running a jewellery shop by the name of "Arihant Jewellers" and had taken jewellery worth Rs. 60,00,000/- from the This is a digitally signed order.

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complainant with an intention to cheat and defraud him, after which the said accused persons had fled away after closing of their jewellery shop. Further, two other complaints dated 10.05.2025 and 11.05.2025 were also received at P.S. Karol Bagh from Mr. Ankur Bansal and Mr. Manav Garg against the said co-accused persons alleging a similar kind of fraud. On the basis of the complaint filed by Appy Bindal, the present FIR was registered at P.S. Karol Bagh for the offences punishable under Sections 318(4)/316(2)/3(5) of the BNS.

5. During the investigation, the accused persons, Mandeep Jain and Rajat Jain were arrested from Kundli, Haryana. In their interrogation, both the accused persons disclosed that they sold the case property to Ansh Diamonds, Karol Bagh, after which they fled away by closing their jewellery shop. During further investigation, on 01.06.2025, the co-accused persons along with the Investigating Officer reached Ansh Diamonds, which was found to be closed. It is alleged that the applicant deliberately closed the shop to evade arrest and recovery of the case property. It was also disclosed by the aforesaid co-accused that the jewellery shop namely, Arihant Jewellers was opened at the instance of the present applicant, one Rajiv Kumar Rehlan and Ansh Lohani to defraud the jewellers of Karol Bagh, and the cheated jewellery was handed over to them.

6. Learned counsel appearing on behalf of the applicant submits that during the course of the hearing of his anticipatory bail application before the learned ASJ, he was given interim protection vide order 17.06.2025 and had joined the investigation. It is submitted that the applicant is ready and willing to join the investigation and, therefore, the present anticipatory bail application may be allowed.

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7. Learned counsel appearing on behalf of the applicant further submits that the other co-accused namely Rajiv Kumar Rehlan and Ansh Lohani have also been granted anticipatory bail by the learned ASJ vide order dated 08.07.2025. It is submitted that the present applicant is similarly situated to the aforesaid accused persons and therefore, anticipatory bail may be granted to him. It is also pointed out that it has come on record that the complainant Appy Bindal had received a sum of Rs. 28,68,000/- from the aforesaid Mandeep Jain and Rajat Jain and therefore, the transaction is commercial in nature.

8. Per contra, learned APP for the State on instructions of the Investigating Officer, submits that the applicant did join the investigation, however, he did not cooperate and was giving answers contrary to the records of the case. It is submitted that the applicant during interrogation had completely denied his acquaintance with co-accused Rajat Jain and Mandeep Jain, however, during the course of investigation, material including technical evidence has come on record to demonstrate that the present applicant was in touch with Mandeep Jain around the time when the alleged offence had taken place. It is further submitted that other evidence has also come on record to show that the applicant was in touch with the aforesaid co-accused persons and despite that he categorically

denied their acquaintance. Apart from the aforesaid complainant Appy Bindal, it is pointed out that 2 other complainants, namely, Ankur Bansal and Manav Garg have also alleged misappropriation of the property by the aforesaid Mandeep Jain and Rajat Jain by following the same modus operandi. The allegation with respect to the present applicant is that the jewellery belonging to the complainants was sold off to the present applicant by co-accused Mandeep Jain and Rajat Jain and, This is a digitally signed order.

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9. Heard learned counsel for the parties and perused the records.

10. The case of the prosecution qua the present applicant is that aforesaid Mandeep Jain and Rajat Jain in their disclosure statements have stated that the subject jewellery of the complainants were sold to present applicant who runs a jewellery shop by the name of Ansh Diamonds. It is also mentioned in the reply filed by the Investigating Officer before the learned ASJ that the present applicant during interrogation denied knowing the co-accused persons namely Mandeep Jain and Rajat Jain. It is further stated that it has come on record that the applicant was in contact with them. The investigation further revealed that the present applicant had, in fact, contacted the accused- Mandeep Jain on 02.05.2025 and 21.05.2025. It is pointed out that as per the case of the prosecution, the aforesaid Mandeep Jain alongwith his co-accused Rajat Jain had closed their shop which was opened on 15.03.2025 on 06.05.2025. The dates on which the present applicant had contacted the aforesaid accused persons which becomes relevant for the purpose of the present investigation. It is further relevant to note that in the disclosure statements made by the co-accused persons Rajat Jain and Mandeep Jain, they had stated that the jewellery shop which they had opened on 15.03.2025 was at the instance of the present applicant. It has also come on record that the statement of one security guard, who was employed at Arihant Jewellers by the co-accused Mandeep Jain and Rajat Jain, has been recorded wherein he had stated that the present applicant who was the owner of Ansh Diamonds, used to come to Arihant Jewellers to meet the aforesaid accused persons. It is further mentioned in the reply filed by the Investigating Officer before the learned ASJ, that the co-accused persons had identified the place by way of a This is a digitally signed order.

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11. So far as the anticipatory bail application of Rajiv Kumar Rehlan is concerned, the observation by the learned ASJ is to the effect that one of the co-accused Mandeep Jain was his employee and, therefore, Mandeep Jain was in constant touch with him and the aforesaid applicant was in fact, dealing with the leather bags. So far as the other co-accused Ansh Lohani is concerned, it has been observed by the learned ASJ that there was no CDR connectivity placed on record qua him.

12. In view of the aforesaid circumstances and the fact that the applicant was in touch with the other co-accused persons at the relevant point of time becomes crucial in the present case and since the case property is yet to be recovered, the custodial interrogation of the present applicant is required. As noted hereinabove, despite interim protection granted to him by the learned ASJ, the applicant tried to mislead the investigation.

13. In view of the above, the present application is dismissed and disposed of.

14. Pending application(s), if any, also stand disposed of.

15. Needless to state that, nothing mentioned hereinabove, is an opinion on the merits of the case and any observations made herein are only for the purpose of the present bail application.

16. Order be uploaded on the website of this Court forthwith.

AMIT SHARMA, J JULY 15, 2025/nk/sc This is a digitally signed order.

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